

Mahendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 March 2018 · Writ-C No. 10146 of 2018 · **Demand notice quashed; fresh final assessment after objections.**

HEADNOTE

A provisional assessment notice that neither states the basis of the assessed sum nor specifies a date and time for hearing fails Clause 6.8(b) of the U.P. Electricity Supply Code, 2005. The consumer is not given the opportunity the Code requires. The resulting demand is quashed, and final assessment is to follow after objections, with reasons.

FACTUAL SUMMARY

Mahendra Singh challenged a demand notice dated 8 January 2018 for Rs.25,687 issued in his name by the distribution licensee. He said he never received the provisional assessment notice, could not reply, and the licensee treated the assessment as final and issued a recovery certificate. Counsel undertook to file objections within two weeks and argued that Clause 6.8(b)(1) required the notice itself to fix a date for hearing. The Court inspected that notice on those complaints.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) requires the provisional assessment notice itself to specify a date and time for hearing; omission of that fixture means the notice is not in accordance with law. ¶ 4-5, 7-8
2. A provisional assessment notice that does not disclose the basis of the assessed amount does not afford the opportunity Clause 6.8(b) requires. ¶ 7-8

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice — hearing date and basis

HOLDING

The provisional assessment notice did not indicate a date and time for hearing as Clause 6.8(b)(1) requires, and did not give the basis of the assessment of Rs.25,687. The petitioner was therefore not afforded the opportunity provided in Clause 6.8(b). The demand notice dated 8 January 2018 was quashed. Final assessment is to be made within six weeks after considering the petitioner's objections, with reasons meeting those objections in the light of Ashok Kumar. ¶ 5, 7-9

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion A provisional assessment notice that neither states the basis of the assessed sum nor specifies a date and time for hearing fails Clause 6.8(b) of the U.P. Electricity Supply Code, 2005. The consumer is not given the opportunity the Code requires.. ¶ 5, 7-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE RS.25,687 ASSESSMENT

Demand quashed only for a defective notice; fresh final assessment directed after objections. ¶ 9

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Ashok Kumar v. State of U.P. 2008 (6) ADJ 660 (DB)			court	Referred

SCJ-1735 · Mahendra Singh v. State of U.P. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.